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Law – 526: Penology and Victimology (Paper – IV) 3rd Semester (Syllabus)

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UNIT – I

Meaning, Aim, Scope and Relevance of Penology

Penology is an important branch of criminology and criminal law that deals with punishment, correction, and rehabilitation of offenders. It studies the philosophy and methods through which society seeks to control crime and reform criminals. The modern approach to penology emphasizes reformation and rehabilitation rather than mere punishment.

Meaning of Penology

The word ‘**Penology**’ is derived from the Latin word “*poena*” meaning **pain or punishment**, and the Greek word “*logos*” meaning **study or science**.

Thus, **Penology means the scientific study of punishment and prison management.**

According to **Encyclopedia Britannica** –

“Penology is a subdivision of criminology that deals with the philosophy and practice of various societies in their attempts to repress criminal activities and satisfy public opinion through an appropriate treatment of offenders.”

Therefore, penology studies the theories, policies, and methods of punishment and correction of criminals.

Aim of Penology

The main aims of penology are:

1. **Protection of Society:**
To protect society from criminals by controlling and preventing crime.

2. **Punishment of Offenders:**
To impose proper and just punishment upon those who break the law.
3. **Reformation and Rehabilitation:**
To transform offenders into law-abiding citizens through education, moral guidance, and training.
4. **Prevention of Crime:**
To discourage both the offender and others from committing crimes in the future.
5. **Social Defence and Justice:**
To maintain a balance between the interests of society, victims, and offenders, ensuring justice for all.

Scope of Penology

The scope of penology is very wide and covers the following areas:

1. **Theories of Punishment:**
Retributive, Deterrent, Preventive, Reformatory, and Expiatory theories.
2. **Correctional Methods:**
Includes systems like probation, parole, open prisons, and community service.
3. **Prison Administration:**
Study of prison management, discipline, and reforms for humane treatment of inmates.
4. **Juvenile Justice System:**
Treatment and rehabilitation of juvenile delinquents under the Juvenile Justice Act.
5. **Victimology:**
Recognition of victims' rights and measures for their compensation and protection.
6. **Recidivism:**
Study of repeated offenders and measures to prevent re-offending.
7. **Comparative and International Study:**
Understanding how different legal systems and international standards deal with punishment and correction.

Relevance of Penology in Modern Times

1. **Shift from Retribution to Reformation:**
Modern criminal justice focuses on reforming offenders rather than taking revenge.
2. **Humanitarian Approach:**
The rights and dignity of prisoners are protected under human rights principles and constitutional guarantees.
3. **Scientific and Sociological Methods:**
Modern penology uses psychology, sociology, and criminology to understand the causes of crime and treat offenders effectively.
4. **Victim-Centered Justice:**
It recognizes that justice must include not only punishment of the offender but also protection and compensation for the victim.
5. **Restorative Justice:**
Emphasizes repairing the harm caused by crime through reconciliation between victim and offender.

6. Social Welfare Perspective:

Crime is seen as a social disease that needs treatment and prevention through education and social reform.

Judicial Interpretation

Sunil Batra v. Delhi Administration (AIR 1978 SC 1675)

The Supreme Court emphasized that prisoners are entitled to the protection of their fundamental rights under Article 21 of the Constitution. The Court highlighted the importance of humane treatment, reformation, and rehabilitation of prisoners as the core of modern penology.

Conclusion

Penology is not limited to the study of punishment alone; it encompasses the entire philosophy of criminal justice, including prevention, reformation, and social defence. It seeks to build a balanced system where the interests of the offender, victim, and society are harmonized. Thus, penology plays a vital role in achieving a just, humane, and effective system of criminal justice.

Theories of Punishment

Introduction

Punishment is the legal consequence imposed on an individual who is found guilty of committing a crime. It is a method adopted by the State to maintain law and order, protect society, and reform offenders.

Theories of punishment explain the objectives and justifications behind punishing a criminal. These theories have evolved over time, reflecting changes in social values and humanistic concerns.

Meaning of Punishment

Punishment means the infliction of pain, suffering, or deprivation by lawful authority upon a person convicted of a crime.

It is a means by which the State expresses its disapproval of the offender's conduct and attempts to deter further crimes.

Main Theories of Punishment

1. Retributive Theory

Meaning:

This is the oldest theory of punishment which is based on the principle of “**an eye for an eye, a tooth for a tooth.**” It means that the offender must suffer in proportion to the crime committed.

Object:

To make the offender realize the pain he has caused to others and to satisfy the moral outrage of society.

Features:

- Punishment is considered a form of moral revenge.
- It is based on justice and proportionality.
- It does not aim at reforming the offender.

Criticism:

- It promotes cruelty and vengeance.
- It fails to reform the offender or prevent future crimes.

Example:

Awarding death penalty or severe imprisonment for heinous crimes.

2. Deterrent Theory**Meaning:**

This theory aims to **deter or discourage** the offender and others from committing crimes in the future. The idea is that fear of punishment will prevent people from violating the law.

Object:

To create fear in the minds of potential offenders.

Features:

- It focuses on prevention of future crimes.
- Punishment should be severe and certain to have a deterrent effect.
- It supports strict enforcement of law.

Criticism:

- Excessive severity may lead to cruelty.
- Habitual criminals are often not deterred by punishment.
- It may fail if punishment is uncertain or delayed.

Case Reference:

Ravji v. State of Rajasthan (1996) – The Court held that deterrent punishment may be justified in heinous crimes to maintain public confidence in justice.

3. Preventive Theory**Meaning:**

According to this theory, the purpose of punishment is to **prevent the offender from repeating the crime** by incapacitating him.

This may be achieved through imprisonment, death penalty, or other restrictions.

Object:

To disable the criminal from committing further offences and to protect society.

Features:

- Focuses on physical prevention, not moral reform.
- Aims at social defence rather than revenge.
- Emphasizes imprisonment, death penalty, or disqualification from certain rights.

Criticism:

- It does not address the moral improvement of the offender.
- Merely restraining a person does not ensure change in his behaviour.

4. Reformatory Theory**Meaning:**

This is the most modern and humane theory. It holds that punishment should aim at **reforming the character of the offender** and turning him into a law-abiding citizen.

Object:

To bring about moral regeneration and social rehabilitation of the offender.

Features:

- Focuses on education, moral instruction, vocational training, and counselling.
- Emphasizes on open prisons, probation, and parole.
- Considers crime as a product of social and psychological factors.

Advantages:

- Reduces chances of recidivism.
- Helps reintegrate offenders into society.
- Promotes social welfare and justice.

Judicial Support:

Sunil Batra v. Delhi Administration (1978 AIR 1675, SC) – The Supreme Court emphasized that punishment should be reformatory and prisoners must be treated with dignity under Article 21.

Criticism:

- May not be effective for hardened criminals.
- Sometimes considered too lenient for serious offences.

5. Expiatory Theory**Meaning:**

This theory is based on the concept of **atonement**. It believes that punishment provides the offender an opportunity to repent and purify his soul.

Object:

To allow the offender to cleanse his guilt through suffering or compensation.

Religious Basis:

In ancient Hindu and Christian philosophy, repentance and confession were seen as means of moral purification.

Criticism:

- More moral and religious than legal.
- Cannot be applied effectively to all crimes.

6. Modern or Mixed Theory

In modern criminal justice systems, no single theory is sufficient. Therefore, a **combination of theories** is adopted—known as the **Modern or Integrated Theory**.

It aims to achieve all objectives: **deterrence, prevention, reformation, and social defence**.

Conclusion

Punishment is not merely an act of vengeance; it is a means of achieving justice and maintaining social order. The modern trend favours a **balanced and reformatory approach**, ensuring both protection of society and rehabilitation of offenders. Thus, the ultimate goal of punishment should be **to reform, not to destroy**.

[Kinds of Punishment with Special Reference to Capital Punishment](#)

Introduction

Punishment is the legal consequence imposed by the State on a person who has been found guilty of committing a crime. It serves as a means to maintain law and order, deter others from committing offences, reform the offender, and ensure justice to victims.

Different legal systems prescribe different kinds of punishments depending on the gravity of the offence, the nature of the offender, and the object of the law.

Kinds of Punishment

The **Indian Penal Code, 1860 (Section 53)** classifies punishments into five kinds:

1. **Death**
2. **Imprisonment for Life**
3. **Imprisonment** (Rigorous or Simple)
4. **Forfeiture of Property**
5. **Fine**

Let us understand each in brief:

1. Death (Capital Punishment)

- It is the **highest and most severe form of punishment**, awarded in the “rarest of rare” cases.
- It results in the **deprivation of the life** of the offender by order of a competent court.

Purpose:

To express society’s condemnation of heinous crimes and to serve as a deterrent to others.

Legal Provision:

Under the **Indian Penal Code**, the death penalty is prescribed for offences such as:

- Waging war against the Government (Section 121)
- Murder (Section 302)
- Dacoity with murder (Section 396)
- Abetment of suicide of a minor or insane person (Section 305)
- Kidnapping for ransom (Section 364A)
- Certain offences under anti-terrorism laws

2. Imprisonment for Life

- The offender is confined for the rest of his natural life unless remitted or commuted by the government.
- It replaces the death penalty in many cases as a more humane form of punishment.

Example:

Section 302 IPC allows either **death or life imprisonment** for the offence of murder.

3. Imprisonment (Rigorous or Simple)

- **Rigorous Imprisonment:** The offender is required to perform hard labour (e.g., for theft, robbery).
- **Simple Imprisonment:** The offender is kept in confinement without hard labour (e.g., for defamation, petty offences).

Purpose: To prevent the offender from committing further crimes and to serve as deterrence.

4. Forfeiture of Property

- The property of the offender is seized by the State.
- It is imposed in very few cases, such as **waging war against the Government (Section 126 IPC)**.
- The object is both punitive and preventive.

5. Fine

- Monetary penalty imposed either alone or along with other punishments.
- It is one of the most common forms of punishment for minor offences.
- Non-payment of fine may result in imprisonment.

Capital Punishment: A Detailed Study

Meaning

Capital punishment, also known as the **death penalty**, means the execution of an offender under judicial order for committing a grave offence. It is the ultimate punishment provided by law.

Historical Background

- The death penalty has existed since ancient times as a means of retribution.
- In modern societies, its justification is debated on moral, legal, and human rights grounds.
- India retains the death penalty but restricts its application to the “rarest of rare” cases.

Judicial Approach in India

The Supreme Court of India has laid down several guidelines on when and how capital punishment should be imposed.

1. **Jagmohan Singh v. State of U.P. (1973 AIR 947, SC)**

The Court upheld the constitutional validity of the death penalty and held that it is not violative of Article 14 or 21.

2. **Rajendra Prasad v. State of U.P. (1979 AIR 916, SC)**

The Court emphasized that the death penalty should be given only in exceptional cases where the alternative of life imprisonment is inadequate.

3. **Bachan Singh v. State of Punjab (1980 AIR 898, SC)**

The Constitution Bench held that the death penalty is constitutionally valid but should be imposed only in the “**rarest of rare**” cases where life imprisonment is unquestionably inadequate.

4. **Machhi Singh v. State of Punjab (1983 AIR 957, SC)**

The Court elaborated the principle of “rarest of rare” by stating that death sentence should be awarded only when the collective conscience of society is shocked.

Rarest of Rare Doctrine

The “**rarest of rare**” test is used by Indian courts to decide whether death penalty should be imposed. It depends on:

- The manner of commission of crime
- The motive behind it
- The brutality or cruelty involved

- The impact on society
- The possibility of reformation of the offender

Arguments in Favour of Capital Punishment

1. Acts as a strong **deterrent** for heinous crimes.
2. Ensures **justice for victims** and their families.
3. Provides **protection to society** from dangerous criminals.
4. Reflects the **moral condemnation** of society.

Arguments Against Capital Punishment

1. **Irreversible** in case of wrongful conviction.
2. Violates the **right to life (Article 21)** and **human dignity**.
3. **No conclusive proof** that it actually deters crime.
4. Reformatory theories favour **rehabilitation**, not death.
5. The possibility of **judicial or systemic error** cannot be ignored.

Current Legal Position in India

- The death penalty is **constitutionally valid** but used only in the **rarest of rare** cases.
- The **President of India** has the power to grant **pardon, reprieve, or commutation** under Article 72 of the Constitution.
- Courts must record **special reasons** under Section 354(3) of the Criminal Procedure Code (CrPC) when awarding a death sentence.

Conclusion

The concept of punishment has evolved from vengeance to reformation, but capital punishment remains a part of Indian law for exceptional cases.

The judicial trend favours life imprisonment as the rule and death penalty as an exception.

Therefore, capital punishment is retained **not as an instrument of revenge**, but as a **necessary deterrent** to protect society from the most heinous and barbaric crimes, ensuring justice and social security.

Unit – II

Preventive and Corrective Systems (i) Police System

Introduction

The **Police System** is the most essential and visible part of the criminal justice administration.

It acts as the **first agency of the State** responsible for maintaining **law and order**, **preventing crime**, and **protecting the life and property** of citizens.

The efficiency, integrity, and fairness of the police system directly influence public confidence in the rule of law.

Meaning

The word “*police*” is derived from the Greek word “*polis*”, meaning **city or state administration**.

In legal terms, the police refer to a **body of persons empowered by the State** to enforce the law, detect and prevent crimes, and maintain public order.

Objectives of Police System

1. **Prevention of Crime:**

The primary object of the police is to prevent crime before it occurs.

This is achieved through patrolling, intelligence collection, and public awareness.

2. **Detection and Investigation of Crime:**

To identify offenders, collect evidence, and assist courts in the prosecution process.

3. **Maintenance of Public Order:**

To ensure peace during public gatherings, festivals, or protests, and to prevent disturbances.

4. **Protection of Life and Property:**

To safeguard the citizens and their property from criminal acts.

5. **Enforcement of Laws and Regulations:**

To implement the provisions of the penal and procedural laws.

6. **Public Assistance:**

To render help in emergencies, accidents, and disasters.

Legal Framework of Police in India

1. **The Police Act, 1861:**

- The basic law governing police organization and functioning in India.
- It established a uniform structure of police administration in all provinces.

2. **State Police Acts:**

- Many States have enacted their own police laws, such as the **Kerala Police Act, 2011**, **Maharashtra Police Act, 1951**, etc.

3. **Code of Criminal Procedure, 1973 (CrPC):**

- Defines police powers regarding **arrest, investigation, and preventive actions** (Sections 36–173 and 149–153).

4. **Constitutional Framework:**

- “Police” is a **State Subject** under **List II (State List), Seventh Schedule** of the Indian Constitution.
- Each State controls its own police administration.

Preventive Role of Police

1. **Surveillance and Patrolling:**

Regular monitoring of crime-prone areas to deter criminal activity.

2. **Preventive Arrest:**

Sections 107–110 of CrPC allow police to take action against persons likely to commit offences.

3. **Maintenance of Records:**

Keeping records of habitual and repeat offenders.

4. **Control of Public Gatherings:**

To prevent riots, unlawful assemblies, and disturbances.

5. **Intelligence Gathering:**

Collecting and analyzing information related to criminal and anti-social elements.

6. **Licensing and Regulation:**

Issuing and monitoring licenses related to arms, explosives, and other regulated activities.

Corrective Role of Police

1. **Rehabilitation of Offenders:**

Assisting in the reintegration of minor offenders through counselling and referral to probation services.

2. **Victim Assistance:**

Providing protection and support to victims during and after investigation.

3. **Community Policing:**

Encouraging cooperation between police and community to promote mutual trust.

4. **Education and Awareness:**

Organizing crime prevention programmes, especially for youth and vulnerable groups.

Judicial Guidelines and Reforms

1. **Prakash Singh v. Union of India (2006 AIR 2177, SC):**

- The Supreme Court directed wide-ranging **police reforms** to ensure professionalism, accountability, and independence.
- Key directions included:
 - Establishment of **State Security Commissions**
 - Fixed **tenure for DGPs and senior officers**
 - **Separation of investigation** from law and order duties
 - Setting up **Police Complaint Authorities** for grievances

2. **DK Basu v. State of West Bengal (1997 AIR 610, SC):**

- Laid down detailed guidelines for **arrest and detention** to prevent custodial torture and protect human rights.

Challenges in Indian Police System

1. **Political Interference** in appointments and functioning.
2. **Corruption and Lack of Accountability.**
3. **Poor Infrastructure and Overburdened Force.**
4. **Human Rights Violations** and public mistrust.
5. **Lack of Modern Training and Technology.**

Suggested Reforms

1. Implementation of **Supreme Court's directives** in *Prakash Singh Case*.
2. **Modernization of Police:** Use of technology, forensic support, and data analysis.
3. **Training in Human Rights and Ethics.**
4. **Community Policing Programs** to improve public trust.
5. Better **working conditions and welfare measures** for police personnel.

Conclusion

The police are the **backbone of the criminal justice system**.

Their dual role — **preventive** and **corrective** — ensures the safety, peace, and stability of society.

However, to make the police system effective and humane, it must function **independently, professionally, and with full respect for constitutional rights and human dignity**.

Only then can it truly serve as an instrument of justice and social welfare.

Preventive and Corrective Systems (ii) Prison System

Introduction

The **Prison System** forms an important part of the **criminal justice administration**.

While the police prevent and detect crime, **prisons deal with convicted offenders**.

The main objective of the prison system is not only to **punish** but also to **reform and rehabilitate** offenders so that they may return to society as law-abiding citizens.

Meaning

A **prison** (or **jail**) is a place used for the **confinement of persons** who are accused or convicted of offences.

The prison system includes all institutions and measures connected with **custody, correction, and rehabilitation** of prisoners.

According to the **Prisons Act, 1894**, a prison means *any jail or place used permanently or temporarily for the detention of prisoners*.

Objectives of Prison System

1. **Deterrence:**

To prevent offenders and others from committing crimes due to fear of punishment.

2. **Reformation:**

To reform the offender through education, moral instruction, and vocational training.

3. **Rehabilitation:**

To help the offender re-enter society as a responsible citizen.

4. **Protection of Society:**

To isolate dangerous offenders and maintain public safety.

5. **Retribution:**

To make offenders realize the consequences of their wrongful acts.

Legal Framework Governing Prisons in India

1. **The Prisons Act, 1894:**

- The first comprehensive law relating to prison administration.
- It deals with maintenance, discipline, health, and classification of prisoners.

2. **Prisoners Act, 1900:**

- Provides for transfer of prisoners from one state to another.

3. **Transfer of Prisoners Act, 1950:**

- Enables transfer of prisoners between states and union territories for administrative reasons.

4. **The Constitution of India:**

- Under **List II (State List)**, “Prisons” is a **State subject**.
- Therefore, each State Government has control over its own prison administration.

5. **Model Prison Manual, 2016:**

- Issued by the Ministry of Home Affairs to modernize prison management and improve living conditions of inmates.

Types of Prisons in India

1. **Central Prisons:**

For long-term prisoners serving sentences of more than two years.

2. **District Prisons:**

For prisoners under trial or serving shorter sentences.

3. **Sub-Jails:**

Smaller prisons in sub-divisions or talukas.

4. **Women’s Prisons:**

Exclusively for female inmates, with special attention to their health and safety.

5. **Open Prisons (Open Colonies):**

Minimum-security prisons where well-behaved convicts are allowed to work outside during the day and return in the evening.

- Aim: Rehabilitation through trust and self-discipline.

6. **Borstal Schools:**

Institutions for young offenders to prevent them from mixing with hardened criminals and to promote reformation through education and training.

Functions of Prison System

1. **Custodial Function:**

Safe and secure custody of prisoners.

2. **Correctional Function:**

Reformation through education, vocational training, counseling, and moral guidance.

3. **Administrative Function:**

Maintenance of discipline, health, sanitation, and order within the prison.

4. **Rehabilitation Function:**

Preparation of prisoners for release and reintegration into society.

Reformatory and Rehabilitative Measures

1. **Educational and Vocational Training:**

Helps prisoners acquire skills for earning a livelihood after release.

2. **Moral and Spiritual Instruction:**

Promotes inner change and self-realization among inmates.

3. **Psychological Counseling:**

Helps to address emotional and behavioral problems.

4. **Work and Wage Programs:**

Inmates are engaged in productive work and may receive small wages, encouraging discipline and responsibility.

5. **Open-Air Camps and Semi-Open Jails:**

Rewarding good conduct by granting more freedom and responsibility.

Judicial Guidelines and Landmark Cases

1. **Sunil Batra v. Delhi Administration (AIR 1978 SC 1675):**

The Supreme Court held that **prisoners are not denuded of fundamental rights**. They are entitled to protection under **Article 21 (Right to Life and Dignity)**.

2. **Charles Sobhraj v. Superintendent, Central Jail (1978 AIR 1514):**

The Court held that solitary confinement and inhuman treatment violate the prisoner's basic human rights.

3. **State of Andhra Pradesh v. Challa Ramkrishna Reddy (AIR 2000 SC 2083):**

Reaffirmed that prisoners have the **right to life and personal liberty** even while in custody.

4. **Ramamurthy v. State of Karnataka (1997 AIR SC 1739):**

The Court highlighted the urgent need for **prison reforms** and better conditions.

Problems in Indian Prison System

1. **Overcrowding:**

Most prisons hold far more inmates than their capacity.

2. **Lack of Sanitation and Medical Facilities.**

3. **Shortage of Staff and Poor Training.**

4. **Violence and Corruption.**

5. **Neglect of Reformation and Rehabilitation.**

6. **Undertrial Prisoners:**

A large number of prisoners remain in jail for years awaiting trial.

Reform Measures Suggested

1. **Implementation of Model Prison Manual (2016).**

2. **Separation of undertrials and convicted prisoners.**

3. **Improved infrastructure and staff training.**

4. **Promotion of open prisons and parole systems.**

5. **Better legal aid and speedy trial mechanisms.**

6. **Human rights training for prison officials.**

Conclusion

The **prison system** is not merely an instrument of punishment but a **means of social defense and moral regeneration**.

The modern approach emphasizes **reformation over retribution**.

Prisons should serve as **correctional institutions** where offenders are re-educated and rehabilitated rather than simply confined.

A humane and just prison system is essential for building a civilized and law-abiding society.

Alternatives to Punishment: Probation and Parole

Introduction

The traditional methods of punishment such as imprisonment or fine often fail to achieve the goal of **reformation and rehabilitation**.

Modern penology emphasizes **correction rather than mere punishment**.

Hence, alternatives like **probation** and **parole** have been developed to reform offenders outside the prison environment, under supervision, while giving them an opportunity to become responsible members of society.

(i) PROBATION

The term “*probation*” is derived from the Latin word “*probare*”, meaning “*to test*” or “*to prove*.”

It refers to a system under which an offender, instead of being sent to prison, is released by the court **on certain conditions** and placed **under supervision** for a specified period to test his good conduct.

In simple words, **probation is a conditional suspension of sentence**.

Definition

According to **Section 4(1) of the Probation of Offenders Act, 1958**:

“When any person is found guilty of having committed an offence not punishable with death or imprisonment for life, the court may, instead of sentencing him at once to any punishment, release him on probation of good conduct.”

Objectives of Probation

1. **Reformation rather than punishment.**
2. **Rehabilitation of offenders** by keeping them within society instead of isolating them.
3. **Prevention of first-time offenders** from becoming habitual criminals.
4. **Reduction of overcrowding in prisons.**
5. **Humanitarian approach** consistent with modern criminology.

Legal Provisions

The main law relating to probation in India is the **Probation of Offenders Act, 1958**.

Important provisions include:

- **Section 3:** Power of court to release certain offenders after admonition.
- **Section 4:** Power to release on probation of good conduct.
- **Section 6:** Special consideration for offenders below 21 years of age — they should not be sentenced to imprisonment unless necessary.
- **Section 14:** Appointment of **Probation Officers** to supervise offenders and submit reports to the court.

Conditions of Probation

A person released on probation must:

1. Maintain **good conduct**.
2. Obey **instructions of the probation officer**.

3. **Report periodically** to the officer or court.
4. **Avoid criminal associations** or bad company.
5. Stay within prescribed **limits or jurisdiction**.

If the offender violates any condition, the court may **cancel probation** and **impose the original sentence**.

Role of the Probation Officer

- Supervise the conduct of probationers.
- Provide counseling and guidance.
- Assist in employment and rehabilitation.
- Submit progress reports to the court.

Case Laws on Probation

1. **Rattan Lal v. State of Punjab (AIR 1965 SC 444):**

The Supreme Court held that the **Probation of Offenders Act** applies even to offenders convicted before its enforcement if the sentence is not yet passed.

The object is **reformation** and **social reintegration**.

2. **State of Gujarat v. Jamnadas G. Pabri (1974 AIR 2233 SC):**

The Court emphasized that probation should be granted after considering the **character, age, and circumstances** of the offender.

3. **Dinesh Sharma v. State of Rajasthan (2006 Cri LJ 2613):**

The Court observed that probation aims to **prevent first offenders from becoming habitual criminals**.

Advantages of Probation

1. Prevents offender from the bad influence of prison.
2. Provides opportunity for rehabilitation in society.
3. Economically beneficial – reduces prison expenses.
4. Encourages moral and social responsibility.

Limitations

1. Not suitable for hardened criminals.
2. Requires efficient supervision and trained officers.
3. May be misused if offenders are not properly monitored.

(ii) PAROLE

The word “*Parole*” comes from the French word “*parole*” meaning “*word of honour*.”

It is the **conditional release of a prisoner** before the completion of his sentence, on the **promise of good behaviour**.

Unlike probation, parole applies to **convicted prisoners** who have already served part of their sentence.

Definition

Parole is the **temporary release of a prisoner** from custody before the expiry of the sentence, **subject to conditions** such as good conduct and periodic reporting to authorities.

Objectives of Parole

1. To **reintegrate prisoners** gradually into society.
2. To allow inmates to **maintain family and social ties**.
3. To encourage **good behaviour** inside prisons.
4. To provide an opportunity for **rehabilitation and reformation**.
5. To **reduce overcrowding** in prisons.

Legal Provisions

- There is **no uniform central law** on parole in India.
- Parole provisions are governed by **State Prison Rules** and **Model Prison Manual, 2016**.
- It is granted by the **State Government or competent authority** under specific conditions.

Types of Parole

1. **Regular Parole:**
Granted for specific reasons such as family emergencies, marriage of close relatives, or death in the family.
2. **Emergency Parole:**
Granted for urgent and serious reasons such as death or critical illness of a family member.

Conditions of Parole

1. The parolee must **maintain good behaviour**.
2. Must **reside at the address** approved by authorities.
3. Must **report periodically** to the police or parole officer.
4. Must **not engage in any criminal activity**.
5. Violation of conditions may lead to **cancellation of parole** and **return to prison**.

Case Laws on Parole

1. **State of Haryana v. Mohinder Singh (2000 Cri LJ 1393 SC):**
The Supreme Court held that parole is **not a right but a concession**, to be granted under rules and subject to conditions.
2. **Sunil Fulchand Shah v. Union of India (AIR 2000 SC 1023):**
The Court clarified that parole **does not suspend or curtail the sentence**, but is only a **temporary release**.
3. **Asfaq v. State of Rajasthan (2017 AIR SC 4986):**
The Supreme Court stated that parole should be granted **liberally and humanely**, especially for social and family rehabilitation of prisoners.

Difference between Probation and Parole

Basis	Probation	Parole
Stage	Before imprisonment	After imprisonment
Authority	Granted by Court	Granted by Prison/State Authorities
Applicability	For first-time or minor offenders	For convicted prisoners

Basis	Probation	Parole
Objective	To reform without imprisonment	To rehabilitate after partial sentence
Supervision	By Probation Officer	By Police or Parole Officer

Conclusion

Both **probation and parole** reflect the **humanitarian and reformative approach** of modern criminal justice. They aim to transform the offender into a socially responsible citizen rather than isolate him through imprisonment. By providing opportunities for **reformation, rehabilitation, and reintegration**, these alternatives promote a more effective and compassionate system of justice.

Juvenile Delinquency: Control Measures with Special Reference to the Juvenile Justice (Care and Protection of Children) Act, 2015

Introduction

The term **juvenile delinquency** refers to **criminal or anti-social behaviour** committed by children or adolescents who are **below the age of 18 years**.

The objective of dealing with juvenile offenders is **not punishment**, but **care, protection, and rehabilitation**.

Modern criminology believes that **a child in conflict with law should be treated, not punished**, as they are capable of reformation through proper guidance and environment.

Meaning and Definition

- **Juvenile:** A child or person who has not attained the age of 18 years.
- **Delinquency:** Behaviour of a minor that violates legal or social norms.

According to the **United Nations**, juvenile delinquency includes “the commission of acts by a person under 18 years of age which would be considered crimes if committed by adults.”

Causes of Juvenile Delinquency

1. **Family Disorganization:** Broken homes, lack of parental care, or domestic violence.
2. **Poverty and Unemployment:** Economic hardship leading to criminal tendencies.
3. **Bad Company:** Influence of anti-social peers or gangs.
4. **Lack of Education:** Ignorance and illiteracy promote deviant behaviour.
5. **Urbanization and Industrialization:** Rapid social change and moral breakdown.
6. **Media and Technology Influence:** Exposure to violence and immoral content.
7. **Psychological or Emotional Problems:** Depression, neglect, or abuse.

Nature of Juvenile Delinquency

Juvenile offences may include:

- Theft, burglary, and robbery
- Drug abuse and trafficking
- Assault, rape, and murder (rare cases)
- Truancy, vagrancy, and substance abuse

However, the focus of law remains **reformation, not retribution**.

Evolution of Juvenile Justice System in India

1. Apprentices Act, 1850:

First law in India to deal with juvenile offenders — aimed to reform instead of punish.

2. Reformatory Schools Act, 1897:

Provided for establishment of reformatory schools for youthful offenders.

3. Children Act, 1960:

Introduced a uniform juvenile justice policy for the Union Territories.

4. Juvenile Justice Act, 1986:

Extended juvenile justice principles to the whole of India.

5. Juvenile Justice (Care and Protection of Children) Act, 2000:

Enacted in compliance with the **UN Convention on the Rights of the Child (1989)**.

6. Juvenile Justice (Care and Protection of Children) Act, 2015:

A more comprehensive and stringent law replacing the 2000 Act.

Juvenile Justice (Care and Protection of Children) Act, 2015

Objective

The main object of the 2015 Act is to ensure that **children in conflict with law** and **children in need of care and protection** are dealt with **in a child-friendly manner**, focusing on **rehabilitation and reintegration** rather than punishment.

Key Features of the Act

1. Classification of Children:

- **Child in Conflict with Law (CCL):**

A child who has committed an offence below 18 years of age.

- **Child in Need of Care and Protection (CNCP):**

A child who is neglected, abused, abandoned, or lacks parental support.

2. Age Determination:

Any person below the age of 18 years is treated as a juvenile.

3. Juvenile Justice Board (JJB):

- Established in every district.
- Composed of a **Metropolitan Magistrate** and **two social workers** (one must be a woman).
- Responsible for inquiry and rehabilitation of children in conflict with law.

4. Child Welfare Committee (CWC):

- Deals with children in need of care and protection.
- Ensures rescue, shelter, adoption, or rehabilitation.

5. Heinous Offences by Juveniles (Age 16–18 years):

- If a child between **16–18 years** commits a **heinous offence** (punishable with 7 years or more), the JJB may transfer the case to a **Children's Court** after preliminary assessment of mental capacity, understanding, and circumstances.

6. Institutional Care and Rehabilitation:

- **Observation Homes:** For temporary care during inquiry.
- **Special Homes:** For rehabilitation of convicted juveniles.
- **Fit Facilities and Fit Persons:** For proper care in society.
- **Aftercare Programmes:** For reintegration of juveniles into society after release.

7. Adoption and Foster Care:

The Act provides detailed procedures for adoption, foster care, and sponsorship for children without families.

8. Prohibition of Corporal Punishment:

No child shall be subjected to torture, humiliation, or physical punishment under any circumstances.

Control and Prevention Measures

1. **Family-based Care:** Strengthening family ties to prevent juvenile delinquency.
2. **Education and Vocational Training:** Providing skills to ensure employment and stability.
3. **Psychological Counseling:** Addressing mental health issues and trauma.
4. **Community Participation:** Involving NGOs and social workers in prevention and rehabilitation.
5. **Special Homes and Observation Centres:** For proper reformation and discipline.
6. **Legal Aid and Representation:** Ensuring that juveniles are given free legal support.
7. **Aftercare Services:** Continuous supervision and support after release.

Important Judicial Decisions

1. **Sheela Barse v. Union of India (AIR 1986 SC 1773):**
The Supreme Court emphasized **speedy trial and humane treatment** of children in detention.
2. **Pratap Singh v. State of Jharkhand (AIR 2005 SC 2731):**
Clarified that **age of the offender** on the date of commission of offence is relevant for determining juvenility.
3. **Salil Bali v. Union of India (AIR 2013 SC 3740):**
The Court upheld the **constitutional validity of the Juvenile Justice Act, 2000**, observing that juveniles deserve reformation, not retribution.
4. **Mukesh & Anr. v. State (Nirbhaya Case, 2013):**
One accused being a juvenile was tried under the Juvenile Justice Act, highlighting the **protective nature** of juvenile law even in heinous crimes.

Rehabilitation and Reformation Measures under the Act

1. **Education and Skill Development** in special homes.
2. **Psychological and Behavioural Counseling.**
3. **Rehabilitation through employment and community support.**
4. **Adoption or Foster Care** for children without guardians.
5. **Aftercare programmes** for reintegration into society.

Significance of the Act

- Promotes **child welfare and social justice.**

- Emphasizes **restorative justice** rather than punitive justice.
- Protects juveniles from stigma and future criminality.
- Balances **society's safety** and **child's reformation**.

Conclusion

Juvenile delinquency is a **social and psychological problem**, not merely a legal one.

The **Juvenile Justice (Care and Protection of Children) Act, 2015** represents a **humanitarian and reformative approach**, focusing on **care, protection, education, and rehabilitation**.

By treating juveniles as **children in need of reform rather than criminals**, the law seeks to transform them into responsible and productive members of society.

UNIT – IV

Recidivism and its Control Measures

Introduction

One of the greatest challenges of modern penology is **recidivism**, which means the **tendency of a convicted criminal to reoffend**.

Despite punishment and reformation, some offenders return to crime due to personal, social, or systemic reasons. Understanding the causes and developing effective control measures is essential for the success of any criminal justice system.

Meaning

The word **“recidivism”** is derived from the Latin term *“recidere”* which means “to fall back” or “to relapse.”

In criminology, it refers to the **repetition of criminal behaviour** by a person who has already been punished or reformed once.

Definition

According to **Donald Taft**,

“Recidivism is the relapse of a criminal into crime after punishment or after release from custody.”

The **National Crime Records Bureau (NCRB)** defines a *recidivist* as a person who **repeats an offence within three years of release or conviction**.

Nature and Extent

Recidivism is a **universal problem** faced by all criminal justice systems.

- In India, studies show that around **6–8% of prisoners** are habitual offenders.
- The rate is higher among **property and drug-related offences**.
- It reflects the **failure of the correctional system** to reform offenders completely.

Causes of Recidivism

Recidivism is the result of multiple interrelated factors, broadly classified as:

1. Personal or Psychological Factors

- Weak moral character and lack of self-control.
- Addiction to alcohol or drugs.
- Mental illness or emotional instability.

- Absence of guilt or remorse for crime.

2. Family Factors

- Broken homes or domestic violence.
- Lack of parental guidance or affection.
- Negative influence of family members involved in crime.

3. Economic Factors

- Unemployment and poverty after release.
- Lack of livelihood opportunities.
- Financial pressures leading to re-engagement in illegal activities.

4. Social Factors

- Social stigma and rejection by community.
- Negative labeling as “criminal” even after release.
- Association with criminal groups or gangs.

5. Institutional Factors

- Harsh prison conditions creating resentment.
- Lack of proper rehabilitation and aftercare programs.
- Failure of parole or probation supervision.
- Inadequate counseling and skill training in prisons.

Consequences of Recidivism

1. **Threat to Social Order:** Repeated crimes disturb peace and stability.
2. **Burden on Criminal Justice System:** Increases caseload and prison population.
3. **Failure of Correctional Efforts:** Reflects inefficiency of penal and reformatory systems.
4. **Economic Cost:** Increased expenditure on law enforcement and prisons.
5. **Loss of Human Potential:** Persistent criminals lose chances of rehabilitation and integration.

Control Measures of Recidivism

To effectively reduce recidivism, the focus must be on **prevention, reformation, and reintegration**.

Major control measures include:

1. Educational and Vocational Training

- Providing literacy and skill development programmes inside prisons.
- Enables offenders to secure employment after release and avoid criminal activity.

2. Psychological and Moral Counseling

- Regular therapy sessions to address behavioural and emotional problems.
- Development of moral values and social responsibility.

3. Rehabilitation and Aftercare Programmes

- Assistance in finding jobs, housing, and social support after release.
- Continuous supervision and guidance by social workers and probation officers.

4. Probation and Parole Systems

- Encouraging reform through conditional release and community supervision.
- Reduces isolation and prepares offenders for normal social life.

5. Community Participation

- NGOs, religious organizations, and community groups can play a vital role in rehabilitation and social acceptance.

6. Legal Aid and Social Security

- Providing legal and social assistance to released prisoners to protect them from exploitation.

7. Open Prisons and Semi-Open Institutions

- Encourage discipline, responsibility, and trust through minimal supervision.
- Effective for well-behaved convicts nearing the end of their sentence.

8. Employment Opportunities

- Establish government schemes or partnerships to employ released prisoners.
- Reduces the temptation to return to crime.

9. Public Awareness and Attitude Change

- Sensitizing society to accept reformed offenders and remove social stigma.

10. Reform of Prison Administration

- Transform prisons into **correctional institutions** rather than punitive ones.
- Focus on individual treatment, classification, and counselling.

Judicial and Governmental Efforts in India

1. **Model Prison Manual, 2016:**

- Emphasizes rehabilitation, education, and aftercare to reduce recidivism.

2. **Open Air Prison System:**

- Introduced in several states like Rajasthan and Maharashtra for gradual reintegration.

3. **Probation of Offenders Act, 1958:**

- Prevents first-time offenders from becoming habitual criminals.

4. **Judicial Support:**

- Courts in India have recognized the need for **humanitarian and reformatory sentencing policies**.

Important Case Laws

1. **Rattan Lal v. State of Punjab (AIR 1965 SC 444):**

The Court emphasized reformation through probation to prevent recidivism among first offenders.

2. **Sunil Batra v. Delhi Administration (AIR 1978 SC 1675):**

The Supreme Court highlighted humane treatment and reformation of prisoners to avoid repetition of crime.

3. **Ramamurthy v. State of Karnataka (1997 AIR SC 1739):**

Directed the government to introduce effective prison reforms to reduce recidivism.

Conclusion

Recidivism is not only a **criminal problem** but also a **social and psychological issue**.

Its control requires a **comprehensive approach** combining punishment with **education, rehabilitation, and social reintegration**.

The ultimate aim of penology should be to **reform, not reject**, and to transform offenders into productive citizens.

A society that gives a **second chance** helps in building a safer and more humane community.

Meaning and Importance of Victimology

1. Introduction

Traditionally, criminal law has always focused on the **offender**—his crime, trial, and punishment—while the **victim** remained forgotten.

However, modern penology and criminology recognize that **justice cannot be complete without considering the victim**.

This realization gave rise to a new branch called **Victimology**—the scientific study of victims and their rights.

2. Meaning of Victimology

The term “**Victimology**” is derived from two Latin words:

- “*Victima*” meaning **one who suffers harm**, and
- “*logos*” meaning **study or knowledge**.

Thus, **Victimology** means **the study of victims of crime, their suffering, needs, and legal rights**.

3. Definitions

1. **Benjamin Mendelsohn (Father of Victimology):**

“Victimology is the scientific study of the relationship between an injured person and the offender, and the role of the victim in the genesis of crime.”

2. **Ezzat A. Fattah:**

“Victimology is the study of victims, including their characteristics, their relationships with offenders, and their interaction with the criminal justice system.”

4. Nature of Victimology

Victimology is **interdisciplinary**, combining **law, sociology, psychology, and criminology**.

It focuses on:

- Understanding how and why people become victims,
- The impact of crime on victims,
- The role of the State in compensating and rehabilitating them, and
- Balancing the rights of the victim and the offender.

5. Evolution of Victimology

- **Ancient Times:** Crime was considered a personal wrong; compensation was given directly to the victim.
- **Medieval Period:** The State took over punishment, and the victim's role diminished.
- **Modern Era:** Since the 20th century, attention returned to victims through movements for *Restorative Justice* and *Victims' Rights*.
- **In India:** Judicial pronouncements and legal provisions (like Section 357 CrPC) revived the concept of victim compensation.

6. Aims and Objectives of Victimology

1. **To identify the needs of victims** – psychological, social, and financial.
2. **To protect the legal rights of victims** within the criminal justice system.
3. **To ensure compensation and rehabilitation** of victims.
4. **To study victim-offender relationships** and prevent victimization.
5. **To balance justice** between offender reform and victim restoration.

7. Importance of Victimology

Victimology plays a crucial role in creating a **fair, humane, and balanced** justice system.

Its importance can be explained as follows:

(i) Recognition of the Victim's Role

It highlights that victims are not just witnesses but active participants who deserve recognition and respect.

(ii) Psychological and Emotional Healing

Understanding victim trauma helps in providing proper counseling and support.

(iii) Legal Protection and Compensation

Victimology promotes laws for **compensation, assistance, and protection** of victims and witnesses.

(iv) Restorative Justice

Encourages reconciliation and restoration between the victim and the offender rather than pure punishment.

(v) Policy Making and Reform

Helps governments and legal systems design effective victim-oriented policies.

(vi) Human Rights Perspective

Ensures justice based on dignity, equality, and protection of fundamental human rights of victims.

(vii) Reduction in Crime

By studying patterns of victimization, preventive measures can be adopted to reduce crime.

8. Victimology and Criminal Justice System

- Traditional criminal justice was **offender-centric**.
- Modern justice system is **victim-inclusive**, ensuring participation and relief.
- In India, the **Criminal Procedure Code (CrPC) Section 357 & 357A** provide for victim compensation.

- **Judiciary** has also interpreted Article 21 (Right to Life) to include the **right to compensation** for victims of crime.

9. Judicial Recognition of Victimology in India

1. Rudul Sah v. State of Bihar (AIR 1983 SC 1086)

- The Supreme Court granted monetary compensation for illegal detention, recognizing **victim's right to compensation** under Article 21.

2. Sebastian M. Hongray v. Union of India (AIR 1984 SC 571)

- The Court ordered compensation to families of missing persons, highlighting the **State's duty to protect victims**.

3. Nilabati Behera v. State of Orissa (AIR 1993 SC 1960)

- Landmark case where the Court held that **compensation is a constitutional remedy** for violation of fundamental rights.

4. Delhi Domestic Working Women's Forum v. Union of India (1995 1 SCC 14)

- The Court directed establishment of **victim compensation schemes** for rape victims and **legal assistance** for women.

10. Importance of Victimology in Indian Context

- Provides a **restorative balance** between punishment and reparation.
- Encourages **State responsibility** towards victims.
- Supports **social justice and human rights** principles enshrined in the Constitution.
- Strengthens **public faith in the criminal justice system**.

11. Conclusion

Victimology has transformed the justice system from being **offender-oriented** to **victim-centered**.

It ensures that justice is **not only done but also felt by the victim**.

A modern legal system must treat the victim as a **central figure in the process of justice**, deserving respect, support, and compensation.

Thus, Victimology is indispensable for achieving **complete, humane, and restorative justice** in society.

Recognition and Development of Victims' Rights

1. Introduction

For a long time, the **criminal justice system was offender-centric**, focusing mainly on detecting, prosecuting, and punishing offenders.

Victims were treated as mere witnesses with **no active role** or **legal recognition**.

However, with the rise of **victimology**, the rights of victims have gradually been recognized and developed at both **international** and **national** levels.

Today, the victim is seen as an essential participant in achieving **true and restorative justice**.

2. Meaning of Victims' Rights

Victims' rights refer to the **legal and moral entitlements** of persons who suffer harm as a result of crime.

These rights aim to:

- Recognize victims as an integral part of the justice process,
- Protect their dignity,
- Provide compensation and rehabilitation, and
- Ensure fair treatment and participation.

3. Historical Background

- **Ancient Justice Systems:** The focus was on compensation to the victim (e.g., *lex talionis* — “an eye for an eye”).
- **Middle Ages:** The State took over prosecution, and the victim’s role diminished.
- **20th Century Onwards:** With the rise of *human rights movements* and *restorative justice*, the victim regained importance.
- **United Nations Declaration of 1985** marked a **global recognition of victims’ rights**.

4. International Recognition of Victims’ Rights

(i) United Nations Declaration of Basic Principles of Justice for Victims of Crime and Abuse of Power (1985)

This was a landmark in international victimology.

It recognized that victims should:

1. Be treated with compassion and respect for their dignity.
2. Have access to justice and prompt redress.
3. Receive fair compensation and restitution.
4. Obtain necessary assistance—medical, psychological, and social.

(ii) European Convention on the Compensation of Victims of Violent Crimes, 1983

- Obligated member States to provide **state-funded compensation** to victims of violent crimes.

(iii) UN Handbook on Justice for Victims (1999)

- Provided practical measures to implement victim assistance programs and ensure participation in criminal proceedings.

These instruments inspired many nations, including India, to adopt **victim-centered legal reforms**.

5. Development of Victims’ Rights in India

(a) Constitutional Recognition

- **Article 21** of the Constitution guarantees the *Right to Life and Personal Liberty*, which includes the **right to live with dignity**.
- The judiciary has interpreted Article 21 to include **compensation for victims** of State or private wrongs.
- Victims’ rights are also linked to **Article 14 (Right to Equality)** and **Article 39-A (Free Legal Aid)**.

(b) Statutory Recognition

1. **Code of Criminal Procedure (CrPC):**
 - **Section 357:** Empowers courts to order compensation to victims.

- **Section 357A (Inserted in 2009):** Mandates every State to establish a *Victim Compensation Scheme (VCS)*.
- **Section 372 (Proviso added in 2009):** Grants **victims the right to appeal** against acquittal, conviction for lesser offence, or inadequate compensation.

2. Indian Evidence Act, 1872:

- Provides protection to victims during testimony (especially in sexual offences).

3. Probation of Offenders Act, 1958:

- Promotes reparation to victims as part of reformatory justice.

4. Juvenile Justice (Care and Protection of Children) Act, 2015:

- Ensures care, protection, and rehabilitation of child victims.

6. Judicial Recognition and Development in India

The Indian judiciary has played a **pioneering role** in recognizing and expanding victims' rights through various judgments:

1. Rudul Sah v. State of Bihar (AIR 1983 SC 1086)

- Supreme Court awarded monetary compensation for illegal detention, recognizing the **right to compensation** as part of Article 21.

2. Sebastian M. Hongray v. Union of India (AIR 1984 SC 571)

- Recognized compensation as a remedy for violation of human rights.

3. Nilabati Behera v. State of Orissa (AIR 1993 SC 1960)

- Established that **compensation is a constitutional right** when State actions violate the right to life.

4. Delhi Domestic Working Women's Forum v. Union of India (1995 1 SCC 14)

- Court emphasized **legal aid, medical assistance, and compensation** for rape victims.

5. State of Gujarat v. Hon'ble High Court of Gujarat (1998 7 SCC 392)

- Recognized the **need for victim rehabilitation and proper treatment of prisoners**.

6. Bodhisattwa Gautam v. Subhra Chakraborty (1996 1 SCC 490)

- Ordered the accused to pay interim compensation to a rape victim during the trial, establishing *victim compensation* as part of the judicial process.

7. Key Components of Victims' Rights

1. Right to Dignity and Respect

- Protection against harassment, intimidation, and humiliation.

2. Right to Compensation and Restitution

- Financial relief for injury, loss, or suffering.

3. Right to Assistance and Protection

- Access to medical, psychological, and legal aid.

4. Right to Participation in Proceedings

- Victim's right to be heard at various stages of the trial.

5. Right to Appeal

– Against acquittal or inadequate punishment/compensation (CrPC Section 372 proviso).

6. Right to Information

– Victims must be informed about the status of investigation and trial.

8. Importance of Recognition

- Promotes **humanitarian and restorative justice**.
- Builds **public confidence** in the justice system.
- Ensures **balance between the rights of victims and offenders**.
- Reduces secondary victimization caused by neglect and insensitivity.

9. Challenges in Implementation

- Lack of awareness among victims.
- Delay in judicial process and inadequate compensation schemes.
- Poor coordination between police, courts, and victim services.
- Limited financial resources of the State.

10. Conclusion

The recognition and development of victims' rights represent a **major shift from retributive to restorative justice**. In India, through judicial activism and statutory reforms, victims have moved from the **margin to the center** of the criminal justice process.

For true justice, both **the offender and the victim** must be given due importance—punishment must coexist with **compassion, compensation, and rehabilitation**.

Victimology thus plays a vital role in achieving a **balanced and humane system of criminal justice**.

Judicial Attitude towards Rights of Victims

1. Introduction

The Indian judiciary has played a **vital and proactive role** in shaping and protecting the rights of victims.

For decades, the criminal justice system was **offender-oriented**, focusing primarily on investigation, prosecution, and punishment.

However, through **judicial interpretations**, the courts have recognized that **victims too deserve justice**—justice not only in the form of punishment to the offender but also **compensation, participation, and protection**.

Thus, the judiciary's attitude has evolved from **neglect of victims** to **protection and empowerment** of victims.

2. Traditional Judicial Approach

- In the **pre-1980 era**, Indian criminal law treated victims as **secondary participants**, mainly as witnesses to the crime.
- Courts rarely addressed their suffering or granted compensation.
- Justice was viewed as **retributive**, focusing on punishing offenders rather than restoring victims.

This narrow approach was criticized for failing to deliver **complete justice**.

3. Modern Judicial Approach

- From the **1980s onwards**, the Supreme Court began interpreting **Article 21 of the Constitution** (Right to Life and Personal Liberty) in a **broad and liberal manner**.
- The Court held that the right to life includes the **right to live with dignity**, which extends to **victims of crime and State abuse**.
- The judiciary now ensures that victims are treated with **respect, fairness, and compassion**, and are **compensated for harm suffered**.

This marks a **transition from retributive justice to restorative justice**.

4. Landmark Judicial Decisions

(i) Rudul Sah v. State of Bihar (AIR 1983 SC 1086)

- The petitioner was unlawfully detained for 14 years even after acquittal.
- The Supreme Court awarded **monetary compensation** for violation of fundamental rights under Article 21.
- This was the **first case** where the Court granted compensation for violation of the right to life.

● *Significance:* It established that **courts have the power to grant compensation** as a public law remedy.

(ii) Sebastian M. Hongray v. Union of India (AIR 1984 SC 571)

- Concerned disappearance of two persons by armed forces.
- The Supreme Court directed **compensation to the victims' families**.

● *Significance:* Recognized the **State's liability for violation of human rights**.

(iii) Bhim Singh v. State of Jammu & Kashmir (AIR 1986 SC 494)

- An MLA was illegally detained by police to prevent him from attending an Assembly session.
- The Court awarded **Rs. 50,000 as compensation**.

● *Significance:* Reinforced that **compensation is an effective remedy for violation of personal liberty**.

(iv) Nilabati Behera v. State of Orissa (AIR 1993 SC 1960)

- A youth died in police custody.
- The Supreme Court awarded **compensation to the victim's mother**, holding that public officials are **personally accountable** for violation of fundamental rights.

● *Significance:* Recognized **compensation as a constitutional right** under Article 21.

(v) Delhi Domestic Working Women's Forum v. Union of India (1995 1 SCC 14)

- Concerned rape victims who faced social stigma and procedural injustice.
- The Court directed the Government to:
 1. Establish **victim compensation schemes**,
 2. Provide **legal assistance**, and
 3. Maintain **confidentiality** of victim identity.

● *Significance:* Recognized the **psychological and emotional needs** of victims.

(vi) Bodhisattwa Gautam v. Subhra Chakraborty (1996 1 SCC 490)

- The accused was ordered to pay **interim compensation** to the rape victim during trial.
- The Court observed that rape is not only a crime against an individual but also against **society at large**.

● *Significance:* Brought **compassion and restitution** into criminal proceedings.

(vii) State of Gujarat v. Hon'ble High Court of Gujarat (1998 7 SCC 392)

- Highlighted the **need for rehabilitation and reform** of victims as well as offenders.

● *Significance:* Promoted **balanced justice** and human rights in prisons.

(viii) Ankush Shivaji Gaikwad v. State of Maharashtra (2013 6 SCC 770)

- The Court emphasized the **mandatory duty of courts to apply Section 357 CrPC** for awarding compensation to victims in every case.

● *Significance:* Strengthened the **statutory right of victims to compensation**.

5. Judicial Principles Evolved

From the above decisions, several key principles have emerged:

1. **Compensation is a constitutional right** under Article 21.
2. The **State is liable** for the violation of victims' rights.
3. Victims are **entitled to participation** in the criminal justice process.
4. **Rehabilitation and reintegration** of victims are essential components of justice.
5. Courts must adopt a **victim-centric approach** in interpreting criminal laws.

6. Judicial Contribution to Legislative Reforms

Judicial activism has directly influenced legislative amendments, such as:

- **Insertion of Section 357A, CrPC (2009):** Victim Compensation Scheme.
- **Proviso to Section 372, CrPC:** Victim's right to appeal.
- **Victim protection measures** in special laws like the **Protection of Children from Sexual Offences (POCSO) Act, 2012**.

These reforms were the result of consistent judicial insistence on **restoring dignity and fairness** to victims.

7. Present Judicial Attitude

The present attitude of Indian judiciary towards victims can be summarized as:

- **Sympathetic** — Understanding victims' pain and trauma.
- **Proactive** — Taking initiative even in the absence of specific laws.
- **Humanitarian** — Viewing victims' rights as part of human rights.
- **Reformative and Restorative** — Focusing on healing, not revenge.

8. Conclusion

The Indian judiciary has evolved from a **passive observer** to a **protector and promoter of victims' rights**.

Through progressive judgments, it has redefined justice to include **compensation, dignity, and participation** of victims.

Judicial activism has ensured that **the victim is no longer forgotten** but is now an essential and respected part of the criminal justice process.

Thus, the modern judicial attitude towards victims is **humane, compassionate, and reformatory**, marking a true advancement towards **restorative justice**.

Legislative Measures for Compensation to the Victims of Crime

1. Introduction

In the past, **criminal law** primarily focused on the *punishment of offenders*, ignoring the *suffering of victims*.

However, modern criminal justice recognizes that justice must also include **relief and reparation** to victims.

Legislative measures now aim to **compensate victims of crime** for the harm, injury, or loss suffered as a result of criminal acts.

This marks the transition from a purely **retributive** to a **restorative** and **victim-centric** justice system.

2. Meaning of Compensation

Compensation means providing **monetary or material relief** to a person who has suffered harm, loss, or injury due to another's wrongful act.

It is both a **legal right** and a **moral duty** of the State to assist victims in restoring their dignity and livelihood.

In criminal law, compensation is a **remedy to victims**—independent of or in addition to punishment given to the offender.

3. Constitutional Basis

The **Constitution of India** provides the foundation for victim compensation through:

- **Article 21** – Right to life includes the *right to live with dignity and receive compensation* for violation of fundamental rights.
- **Article 14** – Right to equality before law, ensuring equal protection to victims.
- **Article 38 & 39-A** – Directive Principles requiring the State to promote *social justice* and provide *free legal aid* to victims.

Thus, compensation is not merely statutory but also a **constitutional obligation** of the State.

4. Statutory Provisions in India

(i) Section 357, Code of Criminal Procedure (CrPC), 1973

- Authorizes the Court to award compensation to victims at the time of conviction.
- The amount may be paid:
 1. To the victim for injury or loss, or
 2. For reimbursement of expenses incurred in prosecution.
- **Objective:** To provide immediate relief to victims alongside punishment of offenders.

● **Limitation:** This section was **discretionary**, and courts rarely used it until later judicial interventions.

(ii) Section 357-A, CrPC (Inserted by Amendment Act, 2008)

This section made **victim compensation mandatory** and directed every State Government to prepare a **Victim Compensation Scheme (VCS)** in coordination with the Central Government.

Key Features:

1. **State Responsibility:** Each State must establish a *fund* for compensating victims.
2. **Application:** Victims or dependents can apply for compensation even if the offender is not traced or convicted.
3. **Rehabilitation:** Includes not only financial aid but also medical treatment and rehabilitation support.
4. **District Legal Services Authority (DLSA):** Handles verification and disbursement of compensation.

● **Significance:** It is a **landmark provision**, ensuring the State's direct responsibility to provide relief to victims.

(iii) Section 357-B, CrPC

Inserted in 2013 after the *Criminal Law (Amendment) Act, 2013*, it provides that:

"The compensation payable by the State under Section 357-A shall be in addition to the payment of fine to the victim under Section 326A or 376D of the IPC."

● **Purpose:** Ensures that victims of heinous crimes like **acid attack** or **gang rape** receive *additional compensation* beyond fines.

(iv) Section 357-C, CrPC

Also added in 2013. It mandates that:

"All hospitals, public or private, shall immediately provide first-aid or medical treatment, free of cost, to victims of offences such as acid attacks or sexual offences and shall inform the police immediately."

● **Purpose:** Protects the *right to health and dignity* of victims of violent crimes.

5. Indian Penal Code (IPC) Provisions

- Certain offences include **fine payable to the victim** (e.g., Section 326A, 376D, 376E).
- The fine collected is often directed towards **victim rehabilitation**.

6. Probation of Offenders Act, 1958

- Under **Section 5**, the court can order the offender to pay compensation to the victim as a condition of probation.
- Promotes **restorative justice** and offender accountability.

7. Legal Services Authorities Act, 1987

- Established **Legal Services Authorities** at national, state, and district levels.
- These bodies provide **free legal aid** and assist victims in obtaining **compensation** under Section 357A CrPC.

8. Special Legislations Providing Compensation

1. **Juvenile Justice (Care and Protection of Children) Act, 2015**
 - Provides for rehabilitation and reintegration of child victims.
2. **Protection of Children from Sexual Offences (POCSO) Act, 2012**
 - Section 33(8) empowers Special Courts to grant compensation for child victims of sexual abuse.
3. **Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989**
 - Section 15A provides for relief and compensation to victims of caste-based violence.

4. **Motor Vehicles Act, 1988 (Sections 140–166)**

- Provides compensation to victims of road accidents (irrespective of fault in some cases).

5. **Protection of Women from Domestic Violence Act, 2005**

- Section 20 authorizes **monetary relief and compensation** for female victims of domestic abuse.

6. **Criminal Law (Amendment) Act, 2013 & 2018**

- Strengthened compensation provisions for victims of sexual offences and acid attacks.

9. **Victim Compensation Schemes (VCS)**

- Every State/UT in India has notified its own **Victim Compensation Scheme** under Section 357A CrPC.
- The **National Legal Services Authority (NALSA)** monitors implementation.
- Compensation amounts vary from **₹50,000 to ₹10,00,000** or more, depending on the gravity of the offence (e.g., rape, acid attack, death, etc.).

Example:

The **Delhi Victim Compensation Scheme, 2018** provides up to ₹7 lakh for rape victims and ₹8 lakh for acid attack victims.

10. **Judicial Contribution**

Indian courts have expanded compensation rights through progressive interpretation of law:

1. **Rudul Sah v. State of Bihar (1983)** – Recognized *constitutional right to compensation*.
2. **Nilabati Behera v. State of Orissa (1993)** – Directed compensation for custodial death.
3. **Bodhisattwa Gautam v. Subhra Chakraborty (1996)** – Ordered interim compensation in rape case.
4. **Ankush Shivaji Gaikwad v. State of Maharashtra (2013)** – Made compensation under Section 357 CrPC *mandatory for courts to consider*.

11. **Significance of Legislative Measures**

1. Recognizes the **victim as a stakeholder** in criminal proceedings.
2. Provides **monetary relief** for medical and social rehabilitation.
3. Strengthens **public faith in justice system**.
4. Promotes **restorative and humanistic justice**.
5. Reflects the **State's constitutional obligation** to protect citizens' rights.

12. **Challenges in Implementation**

- Lack of awareness among victims.
- Delay in compensation disbursement.
- Insufficient funds and bureaucratic hurdles.
- Inconsistent schemes across States.

13. **Conclusion**

Legislative measures for victim compensation in India represent a **major step towards restorative justice**.

Through constitutional principles, statutory provisions, and judicial innovations, victims are now recognized as

central to the justice process.

However, for these measures to be effective, there must be **speedy implementation, proper funding, and public awareness**.

A truly just society is one where **justice heals both—the victim and the community**.

Rights of Offenders vis-à-vis Rights of Victims – An Appraisal

1. Introduction

In the traditional criminal justice system, the focus was mainly on the **offender** — his guilt, punishment, and rehabilitation.

The **victim**, despite being the direct sufferer, was largely ignored.

However, with the evolution of **human rights jurisprudence**, there is now a growing recognition that **both offenders and victims possess fundamental rights** which must be **balanced** to ensure **fairness, justice, and humanity**.

This topic examines the **relationship, conflict, and balance** between the *rights of offenders* and *rights of victims* in modern criminal law.

2. Meaning of “Rights of Offenders”

The rights of offenders are **legal and human rights** guaranteed to every person accused or convicted of a crime. They ensure that even an offender is **treated with dignity and fairness**, consistent with the principle that *“no one shall be deprived of their rights except in accordance with law.”*

3. Major Rights of Offenders

(i) Right to Fair Trial

- Protected under **Article 21** and **Article 39-A** of the Constitution.
- Every accused person has a right to a **speedy, fair, and impartial trial**.
- Ensures justice is administered without prejudice or discrimination.
 - *Case: Hussainara Khatoon v. State of Bihar (1979)* — recognized the right to speedy trial as part of Article 21.

(ii) Right Against Self-Incrimination

- **Article 20(3)**: “No person accused of any offence shall be compelled to be a witness against himself.”
- Protects the offender from forced confession and coercion.

(iii) Right to Legal Aid

- **Article 39-A** and **Section 304 CrPC** guarantee free legal aid to poor or indigent accused persons.
 - *Case: M.H. Hoskot v. State of Maharashtra (1978)* — Free legal aid is a constitutional right of every accused.

(iv) Right Against Double Jeopardy

- **Article 20(2)**: No person shall be prosecuted and punished twice for the same offence.

(v) Right Against Cruel or Inhuman Punishment

- Offenders cannot be subjected to **torture, degrading, or excessive punishment**.
- Reflects **humanitarian values** under Article 21 and international conventions (like ICCPR, 1966).

(vi) Right to Appeal

- The right to appeal against conviction or sentence ensures **judicial review and procedural fairness**.

(vii) Right to Rehabilitation

- Modern penology emphasizes **reformatory justice**, giving offenders opportunities to **reform and reintegrate** into society.
- Provided under **Probation of Offenders Act, 1958** and **Parole** systems.

4. Meaning of “Rights of Victims”

Victims are persons who suffer **physical, emotional, financial, or psychological harm** as a result of criminal acts. Their rights aim to restore **dignity, participation, and compensation** in the criminal justice process.

5. Major Rights of Victims

(i) Right to Participate in Proceedings

- Victims can **submit statements, oppose bail, and appeal against acquittal or inadequate sentence**.
● *Case: Satya Pal Singh v. State of M.P. (2015)* — Victim’s father has right to appeal under Section 372 CrPC.

(ii) Right to Compensation

- Guaranteed under **Section 357 & 357A CrPC, POCSO Act, and SC/ST Act**.
- Ensures monetary and rehabilitative support to victims.

(iii) Right to Fair Treatment and Dignity

- The victim must be treated with **respect, compassion, and privacy**, especially in cases like sexual offences.
● *Case: Nipun Saxena v. Union of India (2018)* — identity of rape victim must not be disclosed.

(iv) Right to Protection

- Victims and witnesses have the right to be **protected from intimidation or threats**.
● *Witness Protection Scheme, 2018* was framed by the Supreme Court for this purpose.

(v) Right to Information

- Victims have the right to be informed about **case status, investigation progress, and trial outcomes**.

(vi) Right to Speedy Justice

- Long delays in trial cause secondary victimization.
- Courts have emphasized **expeditious disposal** of victim-related cases.

6. Conflict Between Rights of Offenders and Victims

The challenge in criminal justice is balancing two competing rights:

Rights of Offender	Rights of Victim
Presumption of innocence	Right to justice and closure
Right to fair trial	Right to speedy trial
Protection from cruel punishment	Demand for adequate punishment
Right to privacy of accused	Right to know case progress

Rights of Offender

Rehabilitation and parole

Rights of Victim

Protection from re-victimization

⚖️ Hence, justice must be **balanced** — not favouring one side excessively.

7. Judicial Approach in Balancing Both Rights

1. **Ankush Shivaji Gaikwad v. State of Maharashtra (2013)**
– Directed courts to *consider victim compensation* while also ensuring fair trial for accused.
2. **State of Gujarat v. Hon'ble High Court of Gujarat (1998)**
– Emphasized humane treatment of prisoners and their right to dignity.
3. **Bodhisattwa Gautam v. Subhra Chakraborty (1996)**
– Ordered interim compensation to rape victim, recognizing her fundamental rights under Article 21.
4. **Delhi Domestic Working Women's Forum v. Union of India (1995)**
– Recognized need for legal aid and compensation for victims of sexual offences.

● The courts, therefore, adopt a **balanced and humanistic approach** — neither ignoring victims nor dehumanizing offenders.

8. International Perspective

- **UN Declaration of Basic Principles of Justice for Victims of Crime (1985)** emphasizes both:
 - *Protection of offenders' human rights*, and
 - *Recognition of victims' rights to access justice and compensation*.

This reflects the **restorative model** of justice followed globally.

9. Need for Harmony Between Both Rights

To ensure true justice, both sets of rights must **coexist harmoniously**, based on following principles:

1. Justice should be **victim-centric** but **offender-sensitive**.
2. Law should provide **rehabilitation** to both parties.
3. Society must aim at **restoration**, not mere punishment.
4. Courts must ensure **speedy, compassionate, and equitable** justice.

10. Conclusion

The criminal justice system stands on two pillars — **offender's rights** and **victim's rights**. Ignoring either side leads to **imbalance and injustice**.

India's modern legal framework and judicial approach now recognize that:

"Justice is not only punishing the guilty, but also healing the hurt."

Hence, an ideal system should strive for **restorative justice**, where offenders are reformed, victims are compensated, and society regains harmony.

Complete summary/Revision sheet

UNIT – I

1. Meaning, Aim, Scope and Relevance of Penology

- **Meaning:** Study of punishment, its philosophy, and methods of controlling crime.
- **Aim:** Prevention of crime, reformation of offenders, and protection of society.
- **Scope:** Covers theories, prison reforms, alternatives to punishment, victim rights.
- **Relevance:** Promotes humane and effective criminal justice.

2. Theories of Punishment

Theory	Main Idea
Retributive	“Eye for an eye” – punishment as moral revenge.
Deterrent	To deter offender and society from crime.
Preventive	To disable offenders through imprisonment or death.
Reformative	To change offender’s attitude and reintegrate into society.
Expiatory	Punishment as repentance or moral purification.
Compensatory	To compensate victim or society for the loss.

3. Kinds of Punishment (with reference to Capital Punishment)

- **Fine, Imprisonment, Forfeiture, Transportation, Death penalty.**
- **Capital Punishment:**
 - Legal in India (Section 53, IPC).
 - Given in “*rarest of rare cases*” (Case: **Bachan Singh v. State of Punjab, 1980**).
 - Aim: Deterrence and protection of society.
 - Controversy: Against human rights and reformative justice.

UNIT – II

1. Preventive and Corrective Systems

(i) Police System

- Preventive mechanism of crime control.
- Functions: Law enforcement, investigation, protection of citizens, maintaining order.
- Legal framework: **Police Act, 1861**, and **Model Police Act, 2006**.
- Modern focus: Community policing, human rights training, transparency.

(ii) Prison System

- Corrective institution for reformation and rehabilitation of offenders.
- Types: Central, District, Sub-jails, Open jails, Women’s prisons.
- Objectives: Reformatory training, education, vocational skills, moral improvement.
- Problems: Overcrowding, poor hygiene, torture, lack of reforms.
- Reforms: *Mulla Committee (1983)*, *Krishna Iyer Committee (1987)*.

UNIT – III

1. Alternatives to Punishment

(i) Probation

- Offender released under supervision instead of imprisonment.
- Law: **Probation of Offenders Act, 1958.**
- Aim: Reformation and rehabilitation.
- Conditions: Good conduct and regular reporting.

(ii) Parole

- Temporary release of prisoner for specific reason (family, health, etc.).
- Purpose: Maintain family ties, reformatory aid.
- Difference: Parole after imprisonment; probation instead of imprisonment.

2. Juvenile Delinquency and Control Measures

- **Meaning:** Crimes committed by persons below 18 years.
- **Causes:** Poor parenting, poverty, media, peer pressure.
- **Control Measures:**
 - Counselling, education, family support.
 - Juvenile homes, special courts, social workers.
- **Law: Juvenile Justice (Care and Protection of Children) Act, 2015.**
 - Establishes Juvenile Justice Boards & Child Welfare Committees.
 - Focus on care, protection, rehabilitation — not punishment.

UNIT – IV

1. Recidivism and Its Control Measures

- **Meaning:** Habitual repetition of crimes by an offender.
- **Causes:** Lack of rehabilitation, unemployment, stigma.
- **Control:** Education, vocational training, parole, counselling, post-release support.
- **Objective:** Reduce re-offending and promote reintegration.

2. Meaning and Importance of Victimology

- **Victimology:** Study of victims, their suffering, and legal protection.
- **Importance:** Restores balance, ensures justice to victims, supports rehabilitation.
- Shift from **offender-centric** to **victim-centric** justice system.

3. Recognition and Development of Victims' Rights

- Early law ignored victims; modern laws recognize them as **participants in justice.**
- Rights recognized under **CrPC (Sections 357, 357A–C), POCSO, JJ Act, SC/ST Act.**

- Supported by **UN Declaration of 1985** on Victims' Rights.

4. Judicial Attitude towards Rights of Victims

- Courts now emphasize victim protection and compensation.
- **Rudul Sah v. State of Bihar (1983)**: Compensation for unlawful detention.
- **Nilabati Behera v. State of Orissa (1993)**: Constitutional compensation.
- **Bodhisattwa Gautam v. Subhra Chakraborty (1996)**: Interim compensation to rape victim.
- **Ankush Shivaji Gaikwad (2013)**: Compensation under Section 357 CrPC mandatory to consider.

5. Legislative Measures for Compensation to Victims

- **CrPC Sections 357, 357A, 357B, 357C.**
- **357A**: State Victim Compensation Scheme (mandatory).
- **357C**: Free medical treatment to victims of sexual offences/acid attacks.
- Other Laws: **POCSO Act, SC/ST Act, JJ Act, DV Act, MV Act**, etc.
- Monitored by **NALSA & DLSA**.

6. Rights of Offenders vis-à-vis Rights of Victims – An Appraisal

- Both have **fundamental human rights**.
- **Offender Rights**: Fair trial, legal aid, protection from torture, rehabilitation.
- **Victim Rights**: Participation, compensation, protection, information.
- **Balance Needed**: Justice must be both *victim-centric* and *offender-sensitive*.
- Aim: Restorative justice — not revenge, but restoration and harmony.

KEY CASES TO REMEMBER

Case	Principle / Significance
<i>Bachan Singh v. State of Punjab (1980)</i>	Rarest of rare rule for death penalty
<i>Rudul Sah v. State of Bihar (1983)</i>	Compensation for unlawful detention
<i>Nilabati Behera v. State of Orissa (1993)</i>	Compensation for custodial death
<i>Bodhisattwa Gautam v. Subhra Chakraborty (1996)</i>	Interim compensation to rape victim
<i>Hussainara Khatoon v. State of Bihar (1979)</i>	Right to speedy trial
<i>Ankush Shivaji Gaikwad (2013)</i>	Mandatory consideration of victim compensation
<i>Satya Pal Singh v. State of M.P. (2015)</i>	Victim's right to appeal
<i>Nipun Saxena v. Union of India (2018)</i>	Privacy of rape victims protected

FINAL CONCLUSION

Modern criminal justice is based on **restorative principles** — balancing punishment, prevention, reformation, and victim protection.

Penology ensures humane treatment of offenders.

Victimology ensures justice and dignity for victims.

Together, they complete the **circle of justice** — fair to all, harsh to none, humane to everyone.

—*Abhishek Chaudhary*